

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET TWO FROM PLAINTIFF ELIZABETH MCDONALD BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504351	MCDONALD, AN INDIVIDUAL, VS WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO BY WALTER FAMILY PARTNERSHIP, A CALIFORNIA LIMITED PARTNERSHIP

Tentative Ruling: No tentative ruling. Motion was vacated and case dismissed by Defendant.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507346	LAWSON VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES BY GREGORY E. LAWSON

Tentative Ruling: The parties do not dispute that Plaintiff is the prevailing party under this Song-Beverly Act case. This Act contains a mandatory fee-shifting provision. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer **shall** be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) Thus, Plaintiff is entitled to fees under this provision. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Hourly Rates:

Plaintiff seeks hourly rates ranging from \$375 to \$700 for 5 attorneys: \$625 for Daghighian; \$700 for Rosenstein; \$550 for Shippen-Murray; \$525 for Ortiz; and \$375 for Kousherian. (Daghighian Decl., ¶¶ 7-11.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff supports the requested rates with counsel's declarations, rate surveys, and prior fee orders. (Daghighian Decl., ¶¶ 13-26 & Exhs. B-O.) Defendant proposes lower rates (between \$250 and \$350 per hour) but does not submit affirmative evidence establishing that its proposed rates reflect prevailing market rates for comparable consumer-warranty litigation. Based on the court's own experience, the hourly rates requested are excessive. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 (the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable).) The below rates reasonably account for counsel's experience and specialized consumer-warranty practice and are in line with what Riverside courts typically award in these lemon law cases.

Time Entries:

Defendant challenges certain billing entries as duplicative, inefficient, inflated, or attributable to boilerplate work. However, Defendant identifies several entries without providing a specific analysis as to why each challenged entry was unreasonable. In particular, Defendant argues that a 1.09.26 initial-disclosure-related entry was duplicative of another entry recorded that same day but has not shown how these tasks duplicated one another rather than constituted related work performed on the same date.

Plaintiff seeks an additional 5 hours for the reply and 2.5 hours for hearing preparation and appearance. A reply was filed but counsel did not submit evidence

documenting the actual time spent on such. The court will allow 1 hour for the reply and 0.5 hour for hearing preparation and appearance. Daghighian's hours are reduced from the estimated reply time of 5 hours to 1 hour and the estimated hearing time from 2.5 hours to 0.5 hour.

The remaining challenged entries reflect reasonable case evaluation and deposition preparation work.

Timekeeper	Original Hours	Adjusted Hours	Adjusted Rates	Total
Daghighian	12.1	6.1	\$525	\$3,202.50
Kousherian	7.7	7.7	\$375	\$2,887.50
Murray	3.9	3.9	\$350	\$1,365
Ortiz	0.7	0.7	\$325	\$227.50
Rosenstein	2.4	2.4	\$550	\$1,320
Total:		20.8		\$9,002.50

Multiplier:

The court declines to apply either a positive or negative multiplier. The action settled within seven months without contested motions, expert discovery, vehicle inspection, or trial preparation. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) Here, this was not a complicated case. There was limited law and motion presented.

Costs:

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of "costs and expenses" to include items excluded under CCP §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff did *not* file a cost memorandum but identified the expense and purpose in counsel's declaration and invoice. (Daghighian Decl., Ex. A.) Defendant does not oppose Plaintiff's request for \$2,205 in costs. These costs appear to be reasonably incurred.

Plaintiff's Motion for Attorney's Fees, Costs and Expenses GRANTED in PART.

Plaintiff awarded Fees in the amount of \$9,002.50 + costs of \$2,205 for Total of \$11,207.50.